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CASE NAME: Victor Payan v. San Gabriel Valley Water Company, et al.

Defendant San Gabriel Valley Water Company's Motion for Leave to File Cross-Complaint

TENTATIVE RULING

The Court GRANTS Defendant San Gabriel Valley Water Company's Motion for Leave to File Cross-Complaint. Defendant San Gabriel Valley Water Company must file and serve the proposed cross-complaint on Plaintiff within five calendar days of the Court's order. Defendant San Gabriel Valley Water Company must serve the summons and the proposed cross-complaint on Glendora Employment Agency, Inc. per the Code.

Defendant San Gabriel Valley Water Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On September 3, 2025, plaintiff Victor Payan (Plaintiff) filed this action against defendants San Gabriel Valley Water Company (Water Company), Dany Alejandro Alvarado (Alvarado) (collectively, Defendants), alleging two causes of action for motor vehicle and general negligence.

On July 10, 2026, Water Company moved for leave to file a cross-complaint. Plaintiff did not oppose the Motion.

LEGAL STANDARD

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Code Civ. Proc., § 428.50.)

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

(Code Civ. Proc., § 426.50.)

The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.

(Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98–99 (Silver Organizations).)

PRELIMINARY ISSUES

The Court notes that Water Company's Motion cites *Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, but that case was decided before the 1972 enactment of Code of Civil Procedure section 426.50. (Motion, 4:12-13; Code Civ. Proc., § 426.50; *Silver Organizations*, supra, 217 Cal.App.3d at p. 98.)

DISCUSSION

Defendant Water Company moves under Code of Civil Procedure section 428.50, subdivision (c), for leave to file a cross-complaint against proposed cross-defendant Glendora Employment Agency, Inc. ("Employment Agency") for comparative equitable indemnity, contribution, and declaratory relief. San Gabriel contends that discovery, specifically preparation for the June 29, 2026 deposition of defendant Dany Alejandro Alvarado and a recently produced staffing agreement, revealed that Alvarado was jointly employed by Water Company and Employment Agency at the time of the May 23, 2024 collision, such that Employment Agency may bear responsibility for any vicarious liability imposed on Water Company under respondeat superior. Water Company argues that the proposed cross-complaint arises from the same transaction and occurrence as Plaintiff's complaint, that section 428.50 is liberally construed to permit related claims to be resolved in a single action, and that its delay of approximately eight months after answering is insufficient to deny leave absent substantial prejudice. Water Company further asserts that Plaintiff will suffer no cognizable prejudice because the cross-complaint does not alter Plaintiff's causes of action or burden of proof, that granting leave promotes judicial economy and avoids duplicative litigation and inconsistent determinations, and that it is amenable to a reasonable continuance of trial if additional discovery is required.

The Court finds Water Company's Motion persuasive. The proposed cross-complaint is based on the claims alleged in Plaintiff's Complaint and therefore arises out of the same transactions and occurrences. (See *VanDenBerghe Decl.*, Ex. A; Code Civ. Proc., § 428.10, subd. (b).) Water Company makes clear that the information supporting the cross-complaint was recently discovered in preparation for Defendant Alvarado's deposition. (*VanDenBerghe Decl.*, ¶ 3.) Moreover, policy favors leave to amend and Plaintiff did not oppose the Motion, which the Court construes as a tacit concession that Water Company's arguments are meritorious. (*Silver Organizations Ltd. v. Frank*, supra, 217 Cal.App.3d at pp. 98-99; *D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion. Water Company must file and serve the proposed cross-complaint on Plaintiff within five calendar days of the Court's order, and serve the summons and the proposed cross-complaint on Glendora Employment Agency, Inc. per the Code.

CONCLUSION

The Court GRANTS Defendant San Gabriel Valley Water Company's Motion for Leave to File Cross-Complaint. Defendant San Gabriel Valley Water Company must file and serve the proposed cross-complaint on Plaintiff within five calendar days of the Court's order. Defendant San Gabriel Valley Water Company must serve the summons and the proposed cross-complaint on Glendora Employment Agency, Inc. per the Code.

Defendant San Gabriel Valley Water Company is ordered to give notice of the Court's ruling within five calendar days of this order.